

1. SUBMITTAL PROCEDURES:

- 1.1. **Project Submittal Requirements:** All submittals shall be submitted electronically (emailed) to the Government Project Manager (PM) in Adobe Acrobat .pdf format. An ENG Form 4025 shall accompany each submittal. These forms will be furnished to the Contractor by the PM. The submittal file name shall be in the format "Contract # – submittal #, submittal name" for example; "0020-001 RTU". Properly complete this form by filling out all the heading blank spaces and identifying each item submitted. Drawings if required by the SOW shall be in ACAD format and a second electronic copy in PDF format. The Government reserves the right to request submittals not listed in this SOW; any submittals not listed in this SOW but requested by the Government shall become a requirement of the project. Submittals requiring Government approval are to be scheduled and made prior to the acquisition of the material or equipment covered thereby. Each submittal is to be complete and in sufficient detail to allow ready determination of compliance with contract requirements. Contractor shall check and approve all items prior to submittal and stamp, sign, and date indicating action taken. Proposed deviations from the contract requirements are to be clearly identified.
 - 1.1.1. The Government reserves the right to require the Contractor to resubmit any item found not to comply with the contract. This does not relieve the Contractor from the obligation to furnish material conforming to the plans and specifications; will not prevent the KO from requiring removal and replacement of nonconforming material incorporated in the work; and does not relieve the Contractor of the requirements to furnish samples for testing by the Government laboratory or for check testing by the Government in those instances where the technical specifications so prescribe.
 - 1.1.2. **Government Approval.** Government approval is required for critical materials, deviations, equipment whose compatibility with the entire system must be checked, safety requirements, and other items as designated by the KO. Government approval is required for any deviations from the solicitation or accepted proposal and other items as designated by the KO. These deviations must contain proper documentation stating why this deviation is necessary and why it is beneficial to the Government.
 - 1.1.3. **Information Only.** Submittals not requiring Government approval will be for information only. The approving authority will not provide approval of information only submittals but shall provide acknowledgement of receipt.
 - 1.1.4. **Variations.** Variations from contract requirements require Government approval and will be considered where advantageous to Government and/or overall project. Discussion with KO or their representative (DPW PM, MICC CS, etc.) prior to submission will help ensure functional and quality requirements are met and minimize rejections and resubmittals. Specifically point out variations from contract requirements in transmittal letters. Failure to point out variations may result in the Government requiring rejection and removal of such work at no additional cost to the Government. When proposing a variation, deliver written request to the KO, with documentation of the nature and features of the variation and why the variation is desirable and beneficial to Government. In addition to documentation required for variation, include the submittals required for the item. Clearly mark the proposed variation in all documentation. Check the column "variation" of ENG Form 4025 for submittals that include proposed variations requested by the Contractor. Set forth in writing the reason for any variations and annotate such variations on the submittal. The Government reserves the right to rescind inadvertent approval of submittals containing unnoted variations.

- 1.1.5. Approval. When approving authority is KO or the designated representative, the Government will: Note date on which submittal was received. Review submittals for approval within scheduling period specified and only for conformance with project design concepts and compliance with contract documents. Identify returned submittals with one of the actions defined in paragraph entitled "Review Notations" and with markings appropriate for action indicated. Upon completion of review of submittals requiring Government approval, stamp and date approved submittals. The transmittal form (4025-R) showing approval of the submittal will be retained by the KO and one copy of the transmittal form will be returned to the Contractor electronically. The KO's approval or acceptance of submittals is not to be construed as a complete check, and indicates only that the general method of construction, materials, detailing and other information are satisfactory. Approval or acceptance will not relieve the Contractor of the responsibility for any error that may exist, as the Contractor is responsible for the satisfactory construction of all work. After submittals have been approved or accepted by the KO, no resubmittal for the purpose of substituting materials or equipment will be considered unless accompanied by an explanation of why a substitution is necessary.
- 1.1.6. Disapproval. Contractor shall make corrections required by the KO. If the Contractor considers any correction or notation on the returned submittals to constitute a change to the contract drawings or specifications, notice is to be given to the KO. Failure to point out deviations may result in the Government requiring rejection and removal of such work at the Contractor's expense. If changes to submittals are necessary, the Contractor shall make such revisions and submission of the submittals in accordance with the procedures above within 7 calendar days. No item of work requiring a submittal change is to be accomplished until the changed submittals are approved.
- 1.1.7. Duration for submittal review: The Government shall have up to 14 calendar days to review each submittal starting when the Government receives the electronic submission. Longer review times may be required on a case-by-case basis.
- 1.2. Project Schedule:
- 1.2.1. Prepare for approval a Project Schedule, as specified herein. Show in the schedule the sequence in which the Contractor proposes to perform the work and dates on which the Contractor contemplates starting and completing all schedule activities. The scheduling of the entire project, including construction sequences, is required. The scheduling of construction is the responsibility of the Contractor. Contractor management personnel shall actively participate in its development. Subcontractors and suppliers working on the project shall also contribute in developing and maintaining an accurate Project Schedule. Provide a schedule that is a forward planning as well as a project monitoring tool.
- 1.2.1.1. Approved Project Schedule. Use the approved Project Schedule to measure the progress of the work and to aid in evaluating time extensions. Make the schedule cost loaded and activity coded. The schedule will provide the basis for all progress payments. If the Contractor fails to submit any schedule within the time prescribed, the Contracting Officer (KO) may withhold approval of progress payments until the Contractor submits the required schedule.
- 1.2.1.2. Default Terms. Failure of the Contractor to comply with the requirements of the contract shall be grounds for a determination, by the KO, that the Contractor is not prosecuting the work with sufficient diligence to ensure completion within the time specified in the contract. Upon making this determination, the KO may terminate the Contractor's right to proceed with the work, or any separable part of it, in accordance with the default terms of the contract.

- 1.2.2. BASIS FOR PAYMENT AND COST LOADING: Use the schedule as the basis for determining contract earnings during each update period and therefore the amount of each invoice payment. Lack of an approved schedule update, or qualified scheduling personnel, will result in the inability of the KO to evaluate Contractor percentage complete for the purposes of payment. Failure of the Contractor to provide all required information will result in the disapproval of the preliminary, initial, and subsequent schedule updates. In the event schedule revisions are directed by the KO and those revisions have not been included in subsequent revisions or updates, the KO may hold retainage up to the maximum allowed by contract, each payment period, until such revisions to the Project Schedule have been made. Activity cost loading shall be reasonable, as determined by the KO. The aggregate value of all activities coded to a contract line item number (CLIN) shall equal the value of the CLIN on the Project Schedule. The Government will withhold 5% of the project amount for submission and acceptance of any and all closeout documents as specified in each project and this shall be shown on the project schedule.
- 1.2.3. PROJECT SCHEDULE DETAILED REQUIREMENTS: The computer software system utilized to produce and update the Project Schedule shall be capable of meeting all requirements of this specification. Failure of the Contractor to meet the requirements of this specification will result in the disapproval of the schedule.
- 1.2.3.1. Critical Path Method. Use the Critical Path Method (CPM) of network calculation to generate the Project Schedule. Prepare the Project Schedule using the Precedence Diagram Method (PDM).
- 1.2.3.2. Level of Detail Required. Develop the Project Schedule to an appropriate level of detail. Failure to develop the Project Schedule to an appropriate level of detail, as determined by the KO, will result in its disapproval. The KO will consider, but is not limited to, the following characteristics and requirements to determine appropriate level of detail:
- a. Activity Durations. Reasonable activity durations are those that allow the progress of ongoing activities to be accurately determined between update periods. Procurement activities are defined herein.
 - b. Permit Activities. Include permit activities, when required, with the necessary conferences and follow-up actions and dates. Include the permitting schedule in the Project Schedule, showing the sequence of events involved in carrying out the project permit tasks within the specific contract period. This shall be at a detailed level of scheduling sufficient to identify all major permitting tasks, including those that control the flow of work.
 - c. Procurement Activities. Tasks related to the procurement of long lead materials or equipment shall be included as separate activities in the project schedule. Long lead materials and equipment are those materials that have a procurement cycle of over 30 days. Examples of procurement process activities include, but are not limited to: submittals, approvals, procurement, delivery, start-up, and testing.
 - d. Mandatory Tasks. The following tasks (as required) must be included and properly scheduled:
 - 1. Submission of closeout submittals, equipment commissioning, controls testing plan submission, controls testing, performance verification testing, other systems testing, Contractor's internal project inspection, correction of punchlist from the Contractor's pre-final inspection, final inspection.

2. Government Activities. Show Government and other agency activities that could impact progress. These activities include, but are not limited to: approvals, environmental permit approvals by State regulators, inspections, utility tie-in, Government Furnished Equipment (GFE) and Notice to Proceed (NTP) for phasing requirements.

3. Contract Line Item Number (CLIN) Coding. Code all activities to the CLIN on the CLIN Schedule to which the activity belongs. An activity shall not contain more than one CLIN code. CLIN code all activities, even when an activity is not cost loaded (to include preconstruction and post construction activities).

1.2.4. Scheduled Project Completion and Activity Calendars. The schedule interval shall extend from Notice to Proceed (NTP) date to the required contract completion date. The contract completion activity (End Project) shall finish based on the required contract duration in the accepted contract proposal, as adjusted for any approved contract time extensions. The first scheduled work period shall be the day after NTP is received by the Contractor. Schedule activities on a calendar to which the activity logically belongs. Activities may be assigned to a 7-day calendar when the contract assigns calendar day durations for the activity such as a Government Acceptance activity. Assign the Category of Work Code - Weather Sensitive Installation to those activities that are weather sensitive. Original durations must account for anticipated normal adverse weather. The Government will interpret all work periods not identified as non-work periods on each calendar as meaning the Contractor intends to perform work during those periods.

1.2.4.1. Project Start Date. The schedule shall start no earlier than the date on which the NTP was acknowledged. Include as the first activity in the project schedule an activity called "NTP".

1.2.4.2. Project Completion Date. Constrain completion of the last activity in the schedule by the contract completion date. Schedule calculations shall result in a negative float when the calculated early finish date of the last activity is later than the contract completion date. Include as the last activity in the project schedule an activity called "Project Completion".

1.2.5. PROJECT SCHEDULE SUBMISSIONS: The Contractor shall provide the submissions as described below:

1.2.5.1. Project Schedule Submission. Submit the Project Schedule for approval within 7 calendar days after NTP. The schedule shall demonstrate a reasonable and realistic sequence of activities which represent all work through the entire contract performance period. The Project Schedule shall be at a reasonable level of detail as determined by the KO. This requirement is in addition to any required schedules or submittals submitted in response to a Request for Proposal (RFP).

1.2.5.2. Project Schedule Updates. At the request of the KO, the Contractor shall provide and submit an updated Project Schedule. These submissions will enable the KO to assess the Contractor's progress. If the Contractor fails or refuses to furnish the information and Project Schedule data, which in the judgment of the KO or authorized representative is necessary for verifying the Contractor's progress, the Contractor shall be deemed not to have provided an estimate upon which progress payment may be made.

1.2.6. REQUESTS FOR TIME EXTENSIONS: In the event the Contractor believes they are entitled to an extension of the contract performance period, completion date, or any interim milestone date, furnish the following for a determination by the KO: justification, project schedule data, and supporting evidence (Ex: daily reports showing delays) as the KO may deem necessary. Submission of proof of excusable delay, based on revised activity logic, duration, and costs

(updated to the specific date that the delay occurred) is a condition precedent to any approvals by the Government. In response to each RFP issued by the Government, the Contractor shall submit a schedule impact analysis demonstrating whether or not the change contemplated by the Government impacts the critical path.

1.2.6.1. Justification of Delay. The Project Schedule shall clearly display that the Contractor has used, in full, all the float time available for the work involved with this request. The KO's determination as to the number of allowable days of contract extension shall be based upon the Project Schedule updates in effect for the time period in question, and other factual information. Actual delays that are found to be caused by the Contractor's own actions, which result in a calculated schedule delay, will not be a cause for an extension to the performance period, completion date, or any interim milestone date.

1.2.6.2. Unexcused Delays. Unexcused delays will result in a disapproval of any time extension request and the Contractor will be required to complete the work within the original period of performance. If the Contractor cannot complete the work within the original period of performance, the Contractor will be required to provide consideration to the Government in order to receive a time extension. Consideration will be established on a case by case basis but examples include but are not limited to extended warranty period, upgraded materials, etc.

1.3. Accident Prevention Plan:

1.3.1. Use a qualified person to prepare the written site-specific APP. Prepare the APP in accordance with the format and requirements of USACE EM 385-1-1 and as supplemented herein. Cover all paragraph and subparagraph elements in USACE EM 385-1-1, Appendix A, "Minimum Basic Outline for Accident Prevention Plan". Specific requirements for some of the APP elements are described below. The APP shall be job-specific and address any unusual or unique aspects of the project or activity for which it is written. The APP shall interface with the Contractor's overall safety and health program. Include any portions of the Contractor's overall safety and health program referenced in the APP in the applicable APP element and made site specific. The Government considers the prime Contractor to be the "controlling authority" for all work site safety and health of the subcontractors. Contractors are responsible for informing its subcontractors of the safety provisions under the terms of the contract and the penalties for noncompliance, coordinating the work to prevent one craft from interfering with or creating hazardous working conditions for other crafts, and inspecting subcontractor operations to ensure that accident prevention responsibilities are being carried out. The APP shall be signed by the person and firm (senior person) preparing the APP, the Contractor, the on-site superintendent, the designated site safety and health officer and any designated CSP and/or CIH.

1.3.2. Submit the APP to the Government personnel within 14 calendar days prior to the date of the preconstruction conference for acceptance. Work cannot proceed without an accepted APP.

1.3.3. Once accepted by the KO or their representative, the APP and attachments will be enforced as part of the contract. Disregarding the provisions of this contract or the accepted APP will be cause for stopping of work, at the discretion of the KO, until the matter has been rectified.

1.3.4. Once work begins, changes to the accepted APP shall be made with the knowledge and concurrence of the KO, or their representative, project superintendent, SSO, and quality control manager. Should any hazard become evident, stop work in the area, secure the area, and develop a plan to remove the hazard. Notify the KO within 24 hours of discovery. Eliminate/remove the hazard. In the interim, take all necessary action to restore and maintain safe working conditions in

order to safeguard on-site personnel, visitors, the public (as defined by ASSE/SAFE A10.34,) and the environment.

- 1.3.5. Copies of the accepted plan will be maintained at the KO's office and at the job site. Continuously review and amend the APP, as necessary, throughout the life of the contract. Incorporate unusual or high-hazard activities not identified in the original APP as they are discovered.

2. PROJECT REQUIRED SUBMITTALS:

2.1. Pre-Construction Submittals:

- 2.1.1. Quality Control Plan – Plan shall list Contractor POC's with phone numbers and list any subcontractor's used with POC's and phone numbers.
- 2.1.2. Accident Prevention Plan with AHA's
- 2.1.3. Environmental Protection Plan
- 2.1.4. Hazardous materials list with safety data sheet for each material
- 2.1.5. Construction/Project Schedule
- 2.1.6. Training and Completion Letters (AT/OPSEC, iWATCH, E-Verify)
- 2.1.7. Submittal Register (ENG Form 4288-R)
- 2.1.8. Product Data
- 2.1.9. Construction and/or design drawings
- 2.1.10. Any other required pre-construction submittals to confirm adherence to project specifications.

2.2. Closeout Submittals:

- 2.2.1. Operation and Maintenance (O&M) manual
- 2.2.2. Contractor's Warranty Letter
- 2.2.3. The Contractor shall provide a letter of non-retention for all contract documents, plans, drawings, and specifications after the destruction of all copies that are not required by the Contractor to meet legal requirements.
- 2.2.4. As-Built Drawings for all new work
- 2.2.5. Any other required closeout submittals to confirm adherence to project specifications.

3. SAFETY:

- 3.1. In addition to the detailed requirements included in the provisions of this contract, comply with USACE EM 385-1-1, and all Federal, state, and local, laws, ordinances, criteria, rules, and regulations. Submit matters of interpretation of standards to the appropriate administrative agency for resolution before starting work. Where the requirements of this specification, applicable laws, criteria, ordinances, regulations, and referenced documents vary, the most stringent requirements govern.

3.2. Activity Hazard Analysis (AHA):

- 3.2.1. The AHA format shall be in accordance with USACE EM 385-1-1. Submit the AHA for review at least 14 calendar days prior to the start of a project; an accepted AHA is required to start onsite work. Format subsequent AHA's as amendments to the APP. The analysis should be used during daily inspections to ensure the implementation and effectiveness of the activity's safety and health controls.

- 3.2.2. The AHA list will be reviewed periodically (at least monthly) and updated as necessary when procedures, scheduling, or hazards change.
- 3.2.3. Develop the activity hazard analyses using the project schedule as the basis for the activities performed. Any activities listed on the project schedule will require an AHA. The AHA will be developed by the Contractor, supplier, or subcontractor and provided to the prime Contractor for submittal to the KO or their representative.

4. CONTRACTOR QUALITY CONTROL (CQC) DAILY REPORTS:

- 4.1. Maintain current daily records providing factual evidence that required quality control activities and/or tests have been performed. Contractor shall use the Government provided daily inspection form. Daily inspection forms shall start at first day of NTP and continue until the project is 100% complete. Indicate a description of trades working on the project, the number of personnel working and hours worked, weather conditions encountered, equipment on site and hours used, and any delays encountered. Cover both conforming and deficient features and include a statement that equipment and materials incorporated in the work and workmanship comply with the contract. Additionally, annotate job safety evaluations/observations and their results, and any instructions given/received and any conflicts in plans and/or specifications. Furnish the electronic copy of the report to the Government daily within 24 hours after the date covered by the report. Reports need to be submitted for days on which no work is performed. As a minimum, prepare and submit one report for every 7 days of no work and on the last day of a no work period. All calendar days must be accounted for throughout the life of the contract. The first report following a day of no work will be for that day only. Reports must be signed and dated by the CQC Manager or Site Superintendent.

5. CONTRACTOR PERSONNEL AND SUB-CONTRACTOR QUALIFICATIONS:

- 5.1. The Government will not exercise any supervision or control over Contractor or subcontractor employees performing work under this contract. Such employees shall be accountable solely to the Contractor, not the Government. The Contractor, in turn, shall be accountable to the Government for all Contractor employees.
- 5.2. The Contractor shall take appropriate personnel action, as required, in the event any employee becomes involved with civilian or local authorities because of misconduct. The Contractor's employees are subject to the same general rules of conduct while on the Government installation that apply to Government civilian employees.
- 5.3. The Government reserves the right to refuse access to Government installation grounds to any Contractor employee if the KO determines it to be in the best interest of the Government.
- 5.4. The Contractor shall not allow any employee to perform work under the contract while under the influence of alcohol, drugs, or any other incapacitating agent.
- 5.5. The Contractor shall provide a Site Superintendent at the work site during any construction and shall be the main point of contact for the Government QA. The Site Superintendent shall not be delegated to a subcontractor. If the Site Superintendent is responsible for multiple projects, they need not be at the project site at all times as long as they visit the project site at least once per work day and are available on-site within four hours if needed.

- 5.6. The Contractor shall provide a Site Safety and Health Officer (SSHO) as required in the EM385-1-1. The Contractor SSHO may be assigned other duties in addition to the duties required as SSHO. The SSHO may not be delegated to subcontractor.
- 5.6.1. Provide and designate an individual as the Site Safety and Health Officer (SSHO). Provide a site SSHO at the work site at all times to perform safety and occupational health management, surveillance, inspections, and safety enforcement for the Contractor. The Contractor Quality Control (CQC) person can be the SSHO on this contract. Meet the following requirements within the SSHO (Level 3):
- 5.6.1.1. A minimum of 5 years safety work on similar projects.
- 5.6.1.2. 30-hour OSHA construction safety class or equivalent within the last 5 years.
- 5.6.1.3. An average of at least 24 hours of formal safety training each year for the past 5 years.
- 5.6.1.4. Competent person training as needed.
- 5.6.2. Construction Safety Hazard Awareness Training: In addition to the above experience, education, and training requirements, the SSHO must have completed the course entitled "Construction Safety Hazard Awareness Training for Contractors". If the SSHO does not have a current certification, they must obtain the course certification within sixty (60) calendar days from award.
- 5.6.3. SSHO Duties (to include but not limited to):
- 5.6.3.1. Conduct daily safety and health inspections and maintain a written log which includes area/operation inspected, date of inspection, identified hazards, recommended corrective actions, estimated and actual dates of corrections. Attach safety inspection logs to the Contractors' daily quality control report.
- 5.6.3.2. Conduct mishap investigations and complete required reports. Maintain the OSHA Form 300 and Daily Production reports for prime and subcontractors.
- 5.6.3.3. Maintain applicable safety reference material on the job site to include required equipment inspections.
- 5.6.3.4. Attend the preconstruction conference, pre-work meetings including preparatory inspection meeting, and periodic in-progress meetings.
- 5.6.3.5. Implement and enforce accepted APP and AHA.
- 5.6.3.6. Maintain a safety and health deficiency tracking system that monitors outstanding deficiencies until resolution. Post a list of unresolved safety and health deficiencies on the safety bulletin board.
- 5.6.3.7. Ensure subcontractor compliance with safety and health requirements.
- 5.7. The Contractor shall provide a Construction Quality Control (CQC) System Manager. The CQC System Manager may be assigned other duties in addition to the duties required as CQC System Manager. CQC System Manager may also be the SSHO, Project Manager, or Lead Trades person. The CQC and Site Superintendent may not be the same person. The CQC may not be delegated to

subcontractor. The Contractor shall also provide an alternate CQC System Manager. The alternate CQC System Manager may not be delegated to the subcontractor. The requirements for the alternate are the same as the CQC System Manager.

- 5.7.1. The CQC is required to possess specialized skills to assure the required work is being performed properly. The Contractor's CQC staff must maintain a presence at the job site at all times during progress of the work and have complete authority and responsibility to take any action necessary to ensure contract compliance.
- 5.7.2. The CQC System Manager must be a graduate engineer, graduate architect, or a graduate of construction management, with a minimum of 5 years construction experience on construction similar to this contract or a construction person with a minimum of 10 years in related work.
- 5.7.3. As required, the Contractor shall provide as part of the CQC organization specialized personnel to assist the CQC System Manager for the following areas: electrical, mechanical, civil, structural, environmental, and architectural. These individuals may perform other duties simultaneously but must be allowed sufficient time to perform their assigned quality control duties as described in the Quality Control Plan. A single person may cover more than one area provided that they are qualified to perform QC activities in each designated area.

6. QUALITY CONTROL REQUIREMENTS:

- 6.1. Quality Control Plan: Include as a minimum, the following to cover all construction operations, both onsite and offsite, including work by subcontractors, fabricators, suppliers, and purchasing agents and consultants:
 - 6.1.1. A description of the quality control organization, including a chart showing lines of authority and acknowledgment that the CQC staff will implement the three phase control system for all aspects of the work specified. Include a CQC System Manager who reports to the project superintendent.
 - 6.1.2. The name, qualifications (in resume format), duties, responsibilities, and authorities of each person assigned a CQC function.
 - 6.1.3. A copy of the letter to the CQC System Manager signed by an authorized official of the firm that describes the responsibilities and delegates sufficient authorities to adequately perform the functions of the CQC System Manager, including authority to stop work that is not in compliance with the contract. Letters of direction to all other various quality control representatives outlining duties, authorities, and responsibilities will be issued by the CQC System Manager. Copies of these letters shall be furnished to the Government.
 - 6.1.4. Procedures for scheduling, reviewing, certifying, and managing submittals, including those of subcontractors, offsite fabricators, suppliers, and purchasing agents, and consultants.
 - 6.1.5. Control, verification, and acceptance testing procedures for each specific test to include the test name, specification paragraph requiring test, feature of work to be tested, test frequency, and person responsible for each test. (Laboratory facilities approved by the KO shall be used.
 - 6.1.6. Procedures for tracking preparatory, initial, and follow-up control phases and control, verification, and acceptance tests including documentation.

6.1.7. Procedures for tracking construction deficiencies from identification through acceptable corrective action. Establish verification procedures that identified deficiencies have been corrected.

6.1.8. Reporting procedures, including proposed reporting formats.

6.1.9. A list of the definable features of work. A definable feature of work is a task that is separate and distinct from other tasks, has separate control requirements, and may be identified by different trades or disciplines, or it may be work by the same trade in a different environment. Although each section of the specifications may generally be considered as a definable feature of work, there are frequently more than one definable feature under a particular section.

6.2. USACE 3 Phase Inspection Plan:

6.2.1. Preparatory Phase: This phase is performed prior to beginning work on each definable feature of work; after all required plans/documents/materials are approved/accepted, and after copies are at the work site. This phase includes:

6.2.1.1. A review of each paragraph of applicable specifications, reference codes, and standards. Make available during the preparatory meeting a copy of those sections of referenced codes and standards applicable to that portion of the work to be accomplished in the field. Maintain and make available in the field for use by Government personnel until final acceptance of the work.

6.2.1.2. Review of the contract requirements.

6.2.1.3. Check to assure that all materials and/or equipment are on hand, and have been tested, submitted, and approved as required.

6.2.1.4. Review of provisions that have been made to provide required control inspection and testing.

6.2.1.5. Examination of the work area to assure that all required preliminary work has been accomplished.

6.2.1.6. Review of the hazard analysis.

6.2.1.7. Discussion of procedures for controlling quality of the work including repetitive deficiencies. Document construction tolerances and workmanship standards for that feature of work.

6.2.1.8. Check to ensure that the portion of the plan for the work to be performed has been accepted by the KO.

6.2.1.9. Discussion of the initial control phase.

6.2.1.10. The Government must be notified at least 72 hours in advance of beginning the preparatory control phase. Include a meeting conducted by the CQC System Manager and attended by the superintendent, other CQC personnel (as applicable), and the foreperson responsible for the definable feature. Document the results of the preparatory phase actions by separate minutes prepared by the CQC System Manager and attach to the daily CQC report. Instruct applicable workers as to the acceptable level of workmanship required in order to meet contract specifications.

- 6.2.2. Initial Phase: This phase is accomplished at the beginning of a definable feature of work. Accomplish the following:
- 6.2.2.1. Check work to ensure that it is in full compliance with contract requirements. Review minutes of the preparatory meeting.
 - 6.2.2.2. Verify adequacy of controls to ensure full contract compliance. Verify required control inspection and testing.
 - 6.2.2.3. Establish level of workmanship and verify that it meets minimum acceptable workmanship standards. Compare with required sample panels as appropriate.
 - 6.2.2.4. Resolve all differences.
 - 6.2.2.5. Check safety to include compliance with and upgrading of the safety plan and activity hazard analysis. Review the activity analysis with each worker.
 - 6.2.2.6. The Government must be notified at least 48 hours in advance of beginning the initial phase. Prepare separate minutes of this phase by the CQC System Manager and attach to the daily CQC report. Indicate the exact location of initial phase for future reference and comparison with follow-up phases.
 - 6.2.2.7. The initial phase should be repeated for each new crew to work onsite, or any time acceptable specified quality standards are not being met.
- 6.2.3. Follow-up Phase. Perform daily checks to assure control activities, including control testing, are providing continued compliance with contract requirements, until completion of the particular feature of work. Record the checks in the CQC documentation. Conduct final follow-up checks and correct all deficiencies prior to the start of additional features of work that may be affected by the deficient work. Do not build upon nor conceal non-conforming work.

7. CONTRACTOR INSPECTIONS:

- 7.1. Near the completion of all work or stated elsewhere in the specifications, the Contractor QC Manager shall conduct an internal inspection of all the work performed to ensure it meets all the requirements of the base contract as well as the specific requirements within each TO. During this process, the Contractor QC Manager shall develop the Contractor's punch list and provide it to the Government PM as a submittal. Once this is accomplished, the Contractor shall notify the Government that the facility is ready for the Government pre-final inspection. The Contractor shall give a minimum 5 working day notice to the Government QAR when requesting a pre-final inspection.
- 7.2. Pre-Final Inspection and Punch List Items. Upon request for a pre-final inspection, the Government will schedule a pre-final inspection to verify that the facility is complete and ready to be occupied. For this inspection to commence the Contractor QC Manager and representatives from the Directorate of Public Works (DPW) and Contracting shall be present. A Government pre-final punch list may be developed as a result of this inspection which shall detail the items needing correction. The Contractor's QC Manager shall ensure that any and all items noted on the pre-final inspection have been corrected within 7 calendar days. Once these items have been addressed, the Contractor shall notify the Government to request a final inspection, giving a minimum 5 working day notice.

- 7.3. Final Inspection and Acceptance. Upon request for a final inspection, the Government will schedule a final inspection to verify that the facility is complete and ready to be occupied. For this inspection to commence the Contractor QC Manager and representatives from DPW and Contracting shall be present. If all items listed in the pre-final punch list have been corrected, and all work meets the requirements of the Base Contract and Contract SOW, Specifications, and Drawings, (if included) the Government shall accept the work and take ownership of the site. If during the pre-final inspection it is discovered that there are no discrepancies, the pre-final inspection may turn into a final inspection. If any items requiring correction are discovered after the pre-final inspection but before the final inspection, those items must be corrected within 7 calendar days.
- 7.4. Beneficial Occupancy Determination. On a per project per section/phase basis, the Government or Contractor may request a Beneficial Occupancy Determination (BOD). This request is used to allow Government acceptance of a portion of the project in order for the Government to operate, occupy, or use the facility, area, or equipment. This determination does not alleviate the Contractor's responsibility to accomplish all other requirements of the project. The Contractor shall give the Government a minimum 3 working day notice when requesting a BOD and the BOD will be scheduled by the Government QAR. The requirement for the Contractor's QC Manager to provide their punch list as a submittal discussed above also applies to the BOD inspection.
- 7.5. Notification of Noncompliance: The KO will notify the Contractor of any detected noncompliance with the foregoing requirements. Noncompliance includes but is not limited to; late submittal of daily reports, daily reports lacking sufficient detail, Contractor punchlist checklists not being submitted during request for inspections, Government inspections showing multiple missed items on the Contractor punchlist checklist, etc. Contractor shall take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, will be deemed sufficient for the purpose of notification. If the Contractor fails or refuses to comply promptly, the KO may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No part of the time lost due to such stop orders will be made the subject of claim for extension of time or for excess costs or damages by the Contractor.

8. BILLING AND PAYMENT INVOICE:

- 8.1. Billing: The price for each contract line item shall constitute full compensation for furnishing all plant, labor, materials, appurtenances, and incidentals and performing all operations necessary to construct and complete the items in accordance with these specifications and the applicable drawings, including surveying performed by the Contractor. The bid schedule shall define the contract line items. Work paid under one contract line item will not be paid for under any other contract line item.
- 8.1.1. The DPW Procurement Technician, Contract Specialist, and COR for each Contract will be identified in each Contract. When submitting requests for payments (invoices), the Contractor shall follow the invoicing procedures below:
- 8.1.1.1. Prior to submitting each invoice, the Contractor shall ensure that they have provided the following:
- a. All certified payrolls for the period in which they are invoicing. Instructions for providing certified payrolls can be obtained from the Contract Specialist or the COR. These documents

shall be emailed to the Contract Specialist associated with each individual Contract with a carbon copy (CC) sent to the COR.

- b. All submittals required for the period of performance of the invoice have been submitted and approved by the Government.
- c. SF 1413 submitted for all subcontractors to the Contract Specialist with a CC to the COR (this shall be completed before the start of any work).
- d. All daily reports have been submitted to the Government QAR and the percent complete on the daily reports is equal to or more than the billing percentage. Daily reports are not to be revised due to billing percentages; the approved daily reports establish the accepted percentages for billing.

8.1.1.2. The Contractor shall email the DPW Procurement Technician a copy of the following items and CC the COR. The subject line of the email shall include the Contract #, Government QAR name, and Government PM Name. Items to be sent are:

- a. Contractor's invoice.
- b. Contractor's schedule of values (SOV). SOV shall be in tabular form showing a breakdown of the major elements of work from the approved project schedule.
- c. WAWF Checklist (blank copy may be obtained from the COR). Note: the WAWF checklist is for DPW internal use only and will not be returned to the Contractor.
- d. AF Form 3065 Contract Progress Report (blank copy may be obtained from the COR).
- e. If the invoice being submitted is a final invoice, the Contractor shall also supply a release of claims for the Contract.

8.1.2. For approved invoice forms, input the invoice information into WAWF and send a WAWF-generated e-mail to the Contract Administrator and Inspector (COR). Failure to notify the Contract Administrator and the Inspector via the WAWF email will result in the rejection of the WAWF invoice and will require resubmission. For disapproved invoice checklists, make the necessary corrections and submit a new Progress Report and Invoice Form.

9. ELECTRONIC FILE FORMATS:

- 9.1. The Contractor shall establish and maintain the capability to open, create, and send all documents, including contract submittals in Microsoft Office (EXCEL, WORD, PROJECT, etc.), Adobe Acrobat (.pdf), and other similar formats.

10. ELECTRONIC MAIL (E-MAIL) ADDRESS:

- 10.1. The Contractor shall establish and maintain electronic mail (e-mail) capability along with the capability to open various electronic attachments in Microsoft, Adobe Acrobat, and other similar formats. The Contractor shall provide the Contracting Officer a single (only one) e-mail address for electronic communications from the Contracting Officer related to this contract including, but not limited to contract documents, invoice information, request for quotes, and other correspondence.

The Contracting Officer may also use e-mail to notify the Contractor of base access conditions when emergency conditions warrant, such as hurricanes, terrorist threats, etc. Multiple e-mail addresses will not be allowed. It is the Contractor's responsibility to make timely distribution of all Contracting Officer initiated e-mail with its own organization including field office(s). The Contractor shall promptly notify the Contracting Officer, in writing, of any changes to this e-mail address.

11. ENVIRONMENTAL AND CULTURAL RESOURCES:

11.1. Asbestos Containing Material

- 11.1.1. Existing suspect materials involved with all disturbance work are assumed to be Asbestos-Containing Material (ACM). It is the Contractor's responsibility to either test for, or to assume the suspect material is ACM, and that it is abated /encapsulated in accordance with AHERA, Federal, and Local regulations. No Asbestos Hazard Emergency Response Act (AHERA) inspection is required when the suspect materials are assumed to be ACM. The Government reserves the right to accept assumptions of ACM-positive, or to require such AHERA surveys to be performed.
- 11.1.2. Available AHERA survey data will be included with each Contract. The Contractor shall determine the adequacy of the existing survey documentation and include additional AHERA inspections in the proposal if necessary.
- 11.1.3. When performed, inspections shall be accomplished in accordance with the Asbestos Hazard Emergency Response Act (AHERA), Federal and Local regulations. A Certified AHERA Asbestos Building Inspector shall perform all inspections. The inspection documentation shall comply with AHERA, Federal and Local regulations and shall include assessment of each Asbestos-Containing Material (ACM), its location, quantity, type, friability and percentage of asbestos.
- 11.1.4. If the tested material is positive for asbestos, or assumed to be ACM and must be disturbed during project execution, Contractor shall have a certified Asbestos Contractor perform all asbestos disturbance work necessary to complete the project in accordance with 29 CFR 1926.1101, WAC 296-62-077, 296-65, and PSCAA Regulation 3.4. A certified abatement plan and all other applicable requirements of 'UFGS 02 82 00 Asbestos Remediation' are also required to be submitted and accepted before work is started. If this effort is believed to constitute differing site condition(s), then submit an RFI identifying the situation.

11.2. Lead-Containing Paint

- 11.2.1. Existing suspect painted surface materials involved in disturbance work will be considered to contain detectable lead paint. It is the Contractor's responsibility to either test for, or to assume the suspect material is either Lead Based Paint (LBP) or Lead Containing Paint (LCP), and that it is abated/encapsulated in accordance with OSHA, HUD, Federal and Local regulations. The Government reserves the right to accept assumptions of LCP/LBP-positive, or to require such LCP/LBP surveys to be performed.
- 11.2.2. Available lead paint survey will be included with each Contract. The Contractor shall determine the adequacy of the existing survey documentation and include additional lead paint inspections in the proposal if necessary.

- 11.2.3. When performed, testing shall be accomplished in accordance with OSHA and/or HUD guidelines. A Certified Lead Paint Inspector shall perform lead paint inspections. The inspection documentation shall comply with Federal and Local regulations and shall include identification of all lead paint, its location, quantity, percentage by weight, and TCLP characteristics IAW ASTM E1908-16, “Standard Guide for Sample Selection of Debris Waste from a Building Renovation or Lead Abatement Project for Toxicity Characteristic Leaching Procedure (TCLP) Testing for Leachable Lead (Pb)”
- 11.2.4. If the suspect lead containing material is tested and proves positive for lead, or when assumed to be a lead containing painted surface, any disturbance work concerning the painted surfaces shall be in accordance with:
- 11.2.4.1. Federal level: 29 CFR 1926.62: <https://www.osha.gov/laws-regs/regulations/standardnumber/1926/1926.62>
- 11.2.4.2. Washington WISHA-DOSH: WAC 296-62-07521
<http://app.leg.wa.gov/WAC/default.aspx?cite=296-62-07521>
- 11.2.4.3. A Contractor work plan is required to be submitted and accepted before work is started, in accordance with applicable sections of ‘UFGS 02 83 00 Lead Remediation.
- 11.2.4.4. If this effort is believed to constitute differing site condition(s), then submit and RFI identifying the situation.

11.3. Air Quality:

- 11.3.1. The JBLM Air Quality Management Program must receive the following information for mechanical equipment regulated by the Clean Air Act and/or the Puget Sound Clean Air Agency. Information will be submitted to the JBLM DPW Air Program at usarmy.jblm.id-readiness.list.dpw-air1@army.mil.
- 11.3.1.1. External Combustion Equipment/Fuel Burning equipment to include, but not limited to boilers, hot water heaters, and furnaces. Equipment specification sheets with the manufacturer name, model #, fuel type, max input (BTU/hr), burner type stack height, stack diameter, stack velocity, serial #, installation date, and ensure the boiler has a gas meter. Natural gas using equipment will be equipped with low NOx or ultra-low NOx burners if applicable.
- 11.3.1.2. Installation of Refrigerant Containing Equipment. Make, model, serial number, refrigerant type, ASHRAE Number, and total refrigerant charge (per circuit if applicable) and installation date.
- 11.3.1.3. Repair or Removal of Refrigerant Containing Equipment. Records of equipment and/or refrigerant removal/addition and recycling or disposal records.

11.4. Environmental Coordination

- 11.4.1. The Contractor shall comply with all Joint Base Lewis-McChord (JBLM) environmental requirements, including the most current installation regulation 200-1 (Environmental Protection and Enhancement) and Design Standards specification section 01 57 19 (Temporary Environmental Controls). This includes the submission of an Environmental Protection Plan prior to commencement, as detailed in section 01 57 19. The JBLM Environmental Division will

review the Plan and provide any necessary corrections or additions to the Contracting Officer or their representative. Regulation 200-1 and specification section 01 57 19 are available at the JBLM Design Standards website <https://www.jblmdesignstandards.army.mil>.

11.4.2. In accordance with JBLM Reg. 200-3, no construction process water or wastewater shall be discharged to the ground or storm water conveyance system. Construction discharge must meet requirements of the NPDES Construction General Permit (CGP) for Discharges from Construction Activities and guidance documents under the MS4 Permit. In accordance with JBLM Reg. 200-2, any wastewater generated must be collected, processed, characterized, and disposed of into the JBLM sanitary sewer system or other authorized disposal method. Prior to disposal, waste water characterization must at a minimum include pH, Oil and Grease, BOD, and TSS analysis by a NELAC accredited laboratory. Additional analyses may be required if non-conventional wastes or hazardous materials are potential contaminants. Results shall be submitted for review and approval by Public Works and American Water (AW). On site characterization by JBLM Pretreatment staff may waive analytical requirements at the discretion of the Pretreatment program manager. JBLM sanitary sewer discharge requires a Sanitary Sewer Discharge Permit issued by AW. The Environmental Protection Plan for the project must identify any potential wastewater generation and the process of proper disposal.

11.4.2.1. Sewage Discharge Permit: A sanitary sewer discharge permit application may be obtained from the Government Project Manager, DPW Pretreatment, or AW. The Contractor shall fill out the discharge request and submit it to laura.marcasciano@amwater.com. AW may request additional wastewater information/data prior to issuance of the permit.

11.5. Environmental Management System

11.5.1. Environmental Management System (EMS). The JBLM EMS conforms to the criteria defined in the international standard, ISO 14001:2004 Environmental management systems – Requirements with guidance for use.

11.5.2. In accordance with EMS procedures, the Contractor shall be familiar with the JBLM environmental policy and shall ensure that this information is considered and incorporated into this project. Additional information regarding the JBLM EMS is available from the installation EMS Coordinator (253-966-6470).

11.5.3. Both the JBLM environmental policy and an environmental awareness training resource are available at the JBLM EMS webpage: https://home.army.mil/lewis-mcchord/index.php/my-Joint-Base-Lewis-Mcchord/all-services/public_works-environmental_division/environmental-management-system.

11.6. Hazardous Materials (HM)

11.6.1. For any hazardous materials, the Contractor shall submit an initial list of hazardous materials to be used (including unit of measure and Safety Data Sheet for each product). A copy of these documents must be submitted to the Joint Base Lewis-McChord (JBLM) Pollution Prevention Program (usarmy.jblm.id-readiness.list.dpw-aul1@army.mil) prior to commencement. These items must be reviewed by Pollution Prevention and authorized for use by addition to the Contractor's Authorized Use List (AUL) issued by JBLM Pollution Prevention Program. The Contractor shall not use any hazardous materials not listed on their current AUL issued by Pollution Prevention.

- 11.6.1.1. Contractor to note when submitting materials for AUL addition that SDS's must be current within the last five years and the turnaround time for Contractor AUL addition is typically two weeks. This timeframe can be longer based on the material in question.
- 11.6.2. For any in-use hazardous materials, the Contractor shall submit a hazardous material inventory on HJB Form 953 noting the hazardous materials used, the units of measure, quantities used, storage locations, and other information indicated on the form. This inventory shall be submitted at the end of the project. If the project goes into a new calendar year, the Contractor shall also submit a copy of this inventory (accounting for all hazardous materials) by 15 January. For any hazardous materials stored on JBLM, this inventory shall be submitted by the 15th day following the calendar year quarter in which the hazardous materials were used or stored. All HJB 953 inventories shall be submitted electronically and addressed to the Contracting Officer or their representative with usarmy.jblm.id-readiness.list.dpw-hm-inventory1@army.mil included in the carbon copy ("cc") line of the email. Questions regarding the form may be directed to the JBLM Pollution Prevention Program (966-6469). The current HJB Form 953 and form instructions are available at Section 01 57 19 of the JBLM Design Standards <https://www.jblmdesignstandards.army.mil/01-57-19/>.
- 11.6.3. Any insulation, adhesives, paints/coatings, sealants, etc. used will need to meet applicable low emissions requirements per ASHRAE 189.1-2014 section 8.4.2. The Contractor shall also refer to 01 33 29 Sustainability Reporting on the JBLM Design Standards website (<https://www.jblmdesignstandards.army.mil/01-57-19/>).

11.7. Construction and Demolition (C&D) Waste Planning and Reporting

- 11.7.1. The DOD Integrated (Non-Hazardous) Solid Waste Management Policy requires all facilities to meet a non-hazardous solid waste diversion goal of 60% Construction and Demolition Diversion. Create a waste management plan in accordance with section 01 74 19 of the JBLM Design Standards to meet or exceed the 60% C&D waste diversion target.
- 11.7.2. Complete and submit quarterly C&D Diversion and Disposal Reporting Form (HJB Form 229) in accordance with form instructions and paragraph "Reports" in Section 01 74 19 of the JBLM Design Standards. The form and instructions can be accessed via the links at Division 01 Section 01 57 19 of the JBLM Design Standards website (<http://www.lewis-mcchord.army.mil/designstandards/index1.htm>). Section 01 74 19 can also be accessed via the Design Standards website.

12. **OTHER CONDITIONS AFFECTING WORK:**

12.1. Work Coordination

12.2. Interfacing With Others:

- 12.2.1. Government use of the facilities is anticipated while the work under this contract is being performed. The work shall be planned and accomplished so that there will be a minimum of interference and inconvenience to occupants in the building and agencies in the vicinity and to other craftsmen who may have to do work in the affected facilities. Any blockage of building exits or driveways must be coordinated in advance.

- 12.2.2. All work will be scheduled and coordinated with the Government Project Management Team or their designee at all times.
- 12.2.3. The Contractor may not block traffic, roads, access routes, or exits without prior coordination with the Project Manager or other authorized Government representative.
- 12.2.4. Construction restrictions shall be identified as required and indicated on individual Contracts. Utility outages require 14 calendar day advanced notice.
- 12.2.5. Pre-Construction Conference. The Contractor shall attend a pre-work meeting presided over by the Contractor and Government Project Managers prior to commencing construction activities. The Contractor shall contact the Project Manager within thirty business days of issuance of the Contract NTP to establish a date and time for the preconstruction meeting. The Contractor shall submit a site-specific construction schedule and a site specific work plan at that meeting for Government approval unless these items have been previously approved by the Government. The schedule shall be in sufficient detail to identify all aspects of the work including all significant project tasks with durations and start and finish times.

12.3. Compliance with Rules, Regulations, and Statutes

- 12.3.1. All Contractor employees shall observe and comply with all applicable local, State, and Federal rules, regulations, and statutes including those concerning fire, safety, sanitation, security, vehicle safety, and hazardous material handling while performing this Contract. All work shall meet or exceed all applicable industry standards.

12.4. Firearms

- 12.4.1. Contractor personnel shall carry no firearms while performing work under this Contract.

12.5. Work Hours

- 12.5.1. Work hours for the Contractor shall be from 7:30 A.M. to 4:30 P.M, Monday through Friday, excluding Saturdays, Sundays, and Federal Holidays. The Contractor must notify the Contracting Officer (KO) three (3) working days in advance of their intention to work during other periods to allow assignment of additional inspection forces when the Contracting Officer determines that the additional inspection force is reasonably available. All inspections will be done during normal duty hours.

- 12.5.2. Federal Installations under this contract observe the following legal holidays:

New Year's Day, 1 January
Martin Luther King's Birthday, Third Monday in January
President's Day, Third Monday in February
Memorial Day, Last Monday in May
Juneteenth, 19 June
Independence Day, 4 July
Labor Day, First Monday in September
Columbus Day, Second Monday in October
Veterans Day, 11 November
Thanksgiving Day, Fourth Thursday in November
Christmas Day, 25 December

12.6. Site Utilities

12.6.1. Outages

- 12.6.1.1. Any utility outages, including but not limited to, electrical, mechanical, and plumbing systems, shall be coordinated at least ten (10) working days prior to proposed outage. Outages shall be scheduled to minimize interruptions to normal using agency operations. Contractor shall route an outage request form obtained through the Government project manager.

12.6.2. Potable Water

- 12.6.2.1. The Government shall make available to the Contractor, from existing outlets and supplies, reasonable amounts of potable water without charge. The Contractor shall conserve potable water furnished. The Contractor at their own expense shall install and maintain necessary temporary connections and distribution lines and shall remove the connections and lines prior to final acceptance of construction. All connections must be coordinated through the Directorate of Public Works.

12.6.3. Electricity

- 12.6.3.1. Temporary Power Connections: Subject to available supply, the Government, without charge, shall make reasonable amounts of electric current available to the Contractor for performing work at the work area. The Contractor shall conserve electric current furnished. The Contractor at their own expense shall coordinate with the electrical system owner, City Light & Power (CLP), for temporary electrical connections.
- 12.6.3.2. Permanent Power Connections: The construction Contractor shall coordinate with CLP for all exterior electrical civil work within the project construction perimeter. Per Army directive memo for utilities privatization, CLP shall perform all civil and electrical work related to exterior electrical system outside of the project construction perimeter. In all situations, CLP shall procure and install electrical components that are separable from the rest of the site electrical system, make final terminations, and connect to the point of demarcation (POD). CLP's construction will be awarded through a modification to the electrical distribution system privatization contract with Defense Logistics Agency (DLA). JBLM PW Utilities Branch will be responsible for all CLP modifications with the point of contact Ms. Royanna Solis 253-966-3282, Royanna.E.Solis.civ@army.mil.
- 12.6.3.3. For all work performed by the Contractor, inspection and acceptance by CLP is required prior to Government acceptance. Acceptance through the Government will not occur without CLP's concurrence. CLP requirements will govern the installation of the electrical service and Contractor must follow CLP standards and requirements.
- 12.6.3.4. Off post locations: Temporary Power Connections: Subject to available supply, the Government, without charge, shall make reasonable amounts of electric current available to the Contractor for performing work at the work area. The Contractor shall conserve electric current furnished. The Contractor at their own expense shall install and maintain necessary temporary connections and distribution lines and shall remove the connections and lines prior to final acceptance of construction.

12.7. Permits

- 12.7.1. The Contractor shall obtain and submit copies of ALL permits, unless otherwise specified. Each permit shall be obtained before starting the respective items of work. This includes, but is not limited to, permits necessary for decontaminating water and sewer systems, and digging permits.
- 12.7.2. Contractors must obtain a "Dig Permit" from Public Works prior to any ground disturbing activities.
- 12.7.3. Once utilities have been marked as part of the dig permit process, the Contractor shall document (photographs and plan drawings) and maintain the markings for the duration of the project.
- 12.7.4. Projects disturbing an acre or more must request coverage under the NPDES CGP and provide the JBLM Stormwater Program with a copy of the NOI. Submit an electronic Notice of Intent (eNOI) for CGP coverage through the EPA CGP-Net by following the link:
<https://www.epa.gov/npdes/submitting-notice-intent-noi-notice-termination-not-or-low-erosivity-waiver-low-under> Submit a copy of the eNOI to the JBLM Stormwater Program email at:
usarmy.jblm.imcom.list.dpw-stormwater1@army.mil

12.8. Safety

- 12.8.1. USACE Safety and Health Requirements Manual (EM 385-1-1), available online at <http://www.publications.usace.army.mil/USACEPublications/EngineerManuals.aspx>, shall be considered to be a part of this contract and will be enforced as such. The Contractor shall prepare an accident prevention plan in accordance with the most current version of EM 385-1-1.
- 12.8.2. If required by the Contract SOW, the Traffic Control Plan, as required in section 08 of the EM 385-1-1, shall be prepared in accordance with the Manual on Uniform Traffic Control Devices.

12.9. Operation and Maintenance Requirements

- 12.9.1. Operation and maintenance manuals as required by the UFGS Technical Specifications (Divisions 2 thru 48), shall be provided by the Contractor, and edited as required. The intent of the O&M Manuals is to promote and maximize the efficiency, economy, safety, and effectiveness of the life cycle operation, maintenance, and repair of the facility.

12.10. Construction Facilities And Temporary Controls

- 12.10.1. Contractor's staging area requirements shall be discussed for each Contract with the Government representative.
- 12.10.2. The Contractor is responsible for security of their own property and security of Government property when construction activities affect existing security measures.
- 12.10.3. The Contractor shall provide and maintain portable toilet facilities at the site for the use of Contractor and subcontractor personnel, as required by the EM 385-1-1. The units shall be emptied and cleaned at least once a week, or more often if required by the contracting officer. The doors to the unit shall be self-closing. Additionally, the toilet units shall be located out of public view as the site allows.

13. **ANTI TERRORISM (AT) AND OPERATIONAL SECURITY (OPSEC):**

- 13.1. **AT Level I Training.** All Contractor and their subcontractors required to work on JBLM shall complete AT Level 1 awareness training prior to commencing work on JBLM. The Contractor shall submit a signed company letter stating the annual AT Level 1 training has been or will be completed by all employees and subcontractors prior to commencing any work on JBLM. Training certificates shall be maintained and be available for inspection. Compliance may be verified by Government QA. AT Level 1 awareness training is available at the following website: <https://jkodirect.jten.mil>.
- 13.2. **Access and General Protection/Security Policy and Procedures.** All Contractor and all associated sub-Contractor employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by Government representative). The Contractor shall comply with Joint Base Lewis-McChord security regulations: JBLM Regulation 210 1, JBLM Post Regulations, Chapter 7, section XVII; JBLM Regulation 190-13, Access to and Conduct While on the Joint Base Lewis-McChord; and JBLM Regulation 190-5, Installation Traffic Code. Contractor employees shall display either Contractor provided identification badges, RAPID Gate Badge (program expiring on 1 Aug 2019) or the AIE Long Term Badge issued by JBLM. If the Contractor does not have an AIE Long Term Badge, they shall develop a Contractor-provided identification badge made of nonmetallic material, easily readable and include the employee's name, the Contractor's name, and a recent color photograph of the employee. The first step to obtain an AIE Long Term Badge (12 months) is to ensure the Contractor's corporation is on the DES Contractor Access List (CAL) with the correct dates for the contract; the Contractor will request through the PM/COR to be placed on the CAL. Both USACE and PW have POCs for the PM/COR to process CAL additions. The second step is a copy of the company's personnel roster of those requiring badges (showing full name, date of birth, company name, position in company, how often do you come on post, what hours do you access post, what days of the week, and email address) needs to be sent through the PM/COR who will process the list through the USACE or PW POC to DES. If the individuals on the list require access outside of 0700-1700 Monday to Friday this needs to be annotated on the list. The third step is to request AIE Long Term Badge using the AIE LONG TERM BADGE REQUEST FORM, the form will require a Government employee signature and is turned in at Waller Hall Vehicle Registration where the badge is issued. Contractor personnel shall wear the identification badge at all times when performing work under this contract at a Government site, including while attending Government meetings that may take place outside the Government facility. Each Contractor employee shall wear the identification badge in a conspicuous place on the front of exterior clothing and above the waist except when safety or health reasons prohibit such placement. The Contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.
- 13.3. **Real ID Act.** Joint Base Lewis-McChord is in compliance with the REAL ID Act of 2005. This means visitors presenting drivers licenses and Identification cards stating "Not Valid For Federal Purposes" or "Federal Limits May Apply" will need to provide supplemental documentation to prove identity (see link below) in order to be issued a temporary installation pass or a AIE long term pass. If a visitor requesting access does not have REAL ID Act compliant form of identification and cannot provide supplemental identity proofing documents, they must be escorted at all times while on the installation. Each time the pass or AIE long term pass is renewed the supplemental documentation will need to be provided again. For the most current information concerning state-by-

state compliance with the REAL ID Act, visit:

HTTPS://WWW.DHS.GOV/CURRENT-STATUS-STATES-TERRITORIES.

13.4. **iWATCH.** All Contractor employees and their subcontractors required to work on JBLM shall complete iWatch training prior to commencing work on JBLM. The Contractor shall submit a signed company letter stating the one-time iWatch training has been or will be completed by all employees and subcontractors prior to commencing any work on JBLM. Compliance may be verified by Government QA. iWatch training is available at the following website: <https://www.army.mil/standto/2018-07-25> or straight to the video at <https://www.dvidshub.net/video/583923/iwatch-2018>. This training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity. Report the suspicious activity to the JBLM Fusion Center (CRIMINT) 253-966-7303/7320, 911 or usarmy.jblm.imcom.list.des-fusion-cell@army.mil. The “Report Suspicious Activity” flyer will be posted at the job site.

13.5. **OPSEC** Operations security (OPSEC) denies adversaries sensitive information, critical information or essential elements of friendly information. This information requires special protection from disclosure that could compromise or cause a threat to our National Security, an Army organization, activity, family member, DA civilian, or DOD Contractor. OPSEC is everyone’s responsibility that comes in contact with the information. Information that is described below must be controlled, and if the information is in digital or hardcopy format, it needs to be destroyed at contract completion. Control includes not disclosing the information to personnel who do not have the need to have this information; if digital, do not post in a manner open to the public (on cloud storage or publicly available site) and if hard copy secure in a locked area (office, trailer, vehicle, etc...) Examples which may be deemed sensitive include but are not limited to information related to:

- Unit structuring
- administration and personnel
- manning
- Military Operations Planning
- equipment
- intelligence, counterintelligence
- Training and readiness
- security
- vulnerabilities
- logistics
- deploying
- financial data and funding
- acquisition plans
- Drawings, blue prints, as-builts and designs
- capabilities
- utility systems information (electrical, water, waste water, storm water, gas, communications)
- morale

13.5.1. Handle any attempt by unauthorized personnel to solicit sensitive information (for example computer breach or questioning employees on or off JBLM) as a Threat Awareness and Reporting. Program (TARP) incident. Report all facts immediately to the JBLM Fusion center (see iWatch paragraph above) and inform the COR.

- 13.6. **OPSEC Level I Training.** All Contractor employees and their subcontractors required to work on JBLM or have access to contract documents shall complete Level I OPSEC training prior to commencing work on JBLM. The Contractor shall submit a signed company letter stating the annual Level I OPSEC training has been or will be completed by all employees prior to commencing any work on JBLM. Training certificates shall be maintained and be available for inspection. Compliance may be verified by Government QA. Level I OPSEC training is available at the following website: <http://www.cdse.edu/catalog/operations-security.html>
- 13.6.1. If required by the OPSEC Review for each Contract the Contractor shall develop an OPSEC SOP/Plan prior to commencing work on JBLM. The OPSEC SOP/Plan must be reviewed and approved by the Requiring Agency (RA) OPSEC Officer. The SOP/Plan will include the Government's critical information, why it needs to be protected, where it is located, who is responsible for it, and how to protect it. In addition, the Contractor shall identify an individual who will be an OPSEC Coordinator. After award the COR will provide the PW critical information list to the Contractor to assist in developing the OPSEC SOP/PLAN.
- 13.7. **E-Verify.** The Contractor and subcontractors shall pre-screen all employees required to work on JBLM using the E-Verify website (<https://www.e-verify.gov/>) to meet the established employment eligibility requirements. The Contractor shall ensure that the employee has two valid forms of Government issued identification to ensure the correct information is entered into the E-verify system. The Contractor shall submit a signed company letter stating all employees have or will be screened in E-Verify prior to commencing any work on JBLM.